

AGREEMENT

This AGREEMENT is entered into as of July 1st, 2026, by and between the Oldham County Fiscal Court, hereinafter referred to as "Oldham County", and the Louisville/Jefferson County Metro Government, acting by and through its Department of Public Works and Assets, hereinafter referred to as the "Contractor".

PART I SPECIFIC PROVISIONS

Whereas Oldham County desires to engage the Contractor to provide maintenance for the Community Warning Sirens located within Oldham County and whereas, the Contractor has expressed a willingness to render those services; in consideration of the mutual covenants, promises and representations herein, the parties hereto agree as follows:

SECTION 1 THE AGREEMENT

This Agreement shall consist of this Part I entitled Specific Provisions and Part II entitled Scope of Work.

SECTION 2 SERVICES

The Contractor agrees to perform the services as described in the Scope of Work, which is Part II of this agreement, and in accordance with the terms and conditions of this Agreement.

SECTION 3 COMPENSATION

1. Payments for Community Warning Siren work shall be based on overtime rates that apply to Metro Government union contracts and Metro Policies.
2. Crew size will be a minimum of three people to include a supervisor and two union Electricians.
3. Metro Louisville Public Works will invoice monthly for all work performed based on the following rates.
4. Oldham County agrees to pay all undisputed invoices within 30 days of receipt.
5. All rates below require a 4-hour minimum due to Union contract requirements:

- i. Saturday and weekday after hours are billed at time and a half. This overtime rate for a 3-person crew equals \$306.26 per hour.
 - ii. Sundays and Holidays are billed at a double time rate. This overtime rate for a 3-person crew equals \$408.34 per hour.
 - iii. All equipment rates will be charged at the current FEMA rates which covers equipment hourly rate, fuel, and maintenance cost.
 - iv. All materials purchased shall be charged at direct cost to include shipping and delivery.
6. The fees listed may increase during the terms of this Agreement due to annual cost of living and union contractual increases. When this occurs Metro Public Works will make written notification to Oldham County of these increases. Oldham County Fiscal Court agrees to pay the increase charges as they occur.

SECTION 4 PERIOD OF PERFORMANCE

This Agreement shall commence July 1st, 2026, and terminate June 30, 2029. All the services and work required in the Scope of Work shall be completed and presented to Oldham County on or before the termination date unless approved in writing by Oldham County.

SECTION 5 PROJECT FUNDING

- A. It is expressly understood and agreed that the final claim shall be submitted to Oldham County no later than twenty-five (25) days after the termination date of this Agreement.

SECTION 6 REQUEST FOR PAYMENT

The Contractor agrees to adhere to all payment procedures of Oldham County during the term of this Agreement. Payment for any cost pursuant to this section shall not constitute a final determination by Oldham County of the allowability of such cost and shall not constitute a waiver of any violation of the terms of this Agreement committed by the Contractor. The Contractor shall reimburse Oldham County for all funds spent on said ineligible work. In order for the Contractor to be reimbursed for any costs which are not listed in the Project Budget the Contractor must obtain written approval from Oldham County prior to incurring these costs.

SECTION 7 INSURANCE

The Contractor shall comply with all applicable insurance, surety bonds, and qualifications of State and Local law.

SECTION 8 LEGAL AUTHORITY

Contractor hereby assures and certifies with respect to this Agreement that it possesses the legal authority to execute and administer this Agreement.

IN WITNESS WHEREOF, Oldham County and the Contractor have by their duly authorized officials entered into this agreement.

Louisville/Jefferson County
Metro Government

BY: Wesley Sydnor

Wesley Sydnor, PE
Director, Public Works, and Assets

Date: 06/29/26

Oldham County Fiscal Court

BY: _____

Date: _____

Approved as to Form and Legality:

Michael J. O'Connell
Jefferson County Attorney

Date: _____

PART II SCOPE OF WORK

The Contractor shall provide supervision, labor, equipment, and materials to perform specifically requested Electrical Maintenance work on Community Warning Sirens located within Oldham County. The scope of work includes, but is not limited to, the items listed below.

1. This work may include installation of new sirens and maintenance of existing sirens.
2. This program will include performing projected maintenance testing or cycling of the Community Warning Sirens.
3. All service calls shall be requested in writing by Oldham County and submitted to Metro Public Works who will then enter a service request and work order to schedule the work.
4. Due to Metro Public Works Electrical Maintenance Division's demanding internal workloads and obligation to its taxpaying citizens all internal Metro Louisville work will take priority over external requested work.
5. All requested external work per this MOA will be scheduled after normal Metro business hours and will be performed on an overtime basis only.